

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADV. N.N.P.
SARDESAI AT PANAJI, GOA**

In the matter of:

VIKRAM SHAH

...Claimant

V/s.

RIVA TRINDADE & 3 Ors.

...Respondents

**APPLICATION FOR PRODUCTION OF
ADDITIONAL DOCUMENTS.**

MAY IT PLEASE THIS HON'BLE TRIBUNAL:

The Respondent No. 2 herein states and submits as follows:

1. Vide Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024, this Arbitral Tribunal was appointed to decide the dispute between the parties arising out of the Agreement styled as the Articles of Association, purportedly entered into between Mr. Pascoal Trindade, the Claimant, and Respondent No. 4 herein.
2. Pursuant to the Order dated 07.08.2024 passed in Application for Appointment of Arbitrator No. 13/2024 and

upon the constitution of the present Arbitral Tribunal, the Claimant herein filed his Statement of Claim seeking, amongst others, the following reliefs:

- a. This Tribunal be pleased to pass a judgment, order and decree directing Respondent Nos. 1 to 3 to pay the Claimant the sum of Rs. 20,00,00,000/- towards losses incurred by the Claimant;
- b. This Hon'ble Tribunal be pleased to pass a judgment, order and decree appointing a Valuer as decided by this Tribunal to determine the value of the said property and assess the losses incurred by the Claimant;
- c. This Hon'ble Tribunal be pleased to pass a judgment, order and decree appointing a Court Commissioner to partition the property by metes and bounds in terms of the agreed ratios found in the AOA and thereafter deduct the losses incurred by the Claimant from the capital account of the Respondent Nos. 1 to 3 and reduce the same accordingly and also adjust the profit/loss to the Claimant commensurately;

- d. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing Respondent Nos. 1 to 3 to pay the Claimant the sum of Rs. 1,00,00,00,000/- towards damages, loss of opportunity to do business, loss of reputation, loss of mental peace and harassment, and towards future losses to be incurred by the Claimant.
3. This Respondent has filed the Statement of Defense and raised questions qua the jurisdiction and/or arbitrability of the disputes raised in the claim and, in no manner, waives her right to assail the arbitrability of the dispute or the jurisdiction of this Tribunal.
4. This Respondent had also preferred an application under Section 16 of the Arbitration and Conciliation Act, 1996 before this Tribunal. Vide Order dated 01.05.2026, this Tribunal deemed it fit to reject the application under Section 16 of the Arbitration and Conciliation Act, 1996. Whilst reserving the rights of the Respondents to take appropriate

measures qua the same and, without prejudice to the above, the Respondent herein preferred the present application seeking leave to produce additional documents which were brought to the attention and notice of the Respondent only recently. It appears that the amounts claimed to have been invested/paid to Late Mr. Pascoal Trindade were returned to the Claimant's enterprise and Respondent No. 4 herein through various transactions.

5. Similarly, these Respondents herein have also obtained copies of the Affidavit in Evidence filed by the Claimant in the Civil Suit pending before the Civil Judge, Senior Division, at Panaji, wherein the Claimant admits that the subject properties are exclusively owned by Late Mr. Pascoal Trindade and Respondent No. 2 herein. The records of the suit proceedings would also demonstrate that the Claimant himself stepped into the witness box and deposed in terms of his Affidavit in Evidence.

6. This Respondent craves leave to produce the following documents:

- a. Copies of the relevant extracts of the statement of account for the account held with the State Bank of India.
- b. Copies of the relevant extracts of the statement of account for the account held with HDFC Bank.
- c. Copy of the Affidavit in Evidence filed by the Claimant in Special Civil Suit No. 52/2013/A, pending before the Hon'ble Civil Judge, Senior Division, at Panaji, Goa.
- d. Copy of the Order dated 13.10.2022 passed in Special Civil Suit No. 52/2013/A, pending before the Hon'ble Civil Judge, Senior Division, at Panaji, Goa.

7. This Respondent states that the aforesaid documents are essential for the just adjudication of the dispute and are germane to deciding the application under Section 17 of the Arbitration and Conciliation Act, preferred by the Claimant herein.

8. The documents in question are germane to the present proceedings and relevant for the determination of the dispute at hand. It is apparent from the dates and nature of the transactions that these amounts were interlinked with the AOA relied upon by the Claimant, and it is evident that Late Pascoal Trindade had, in fact, paid/returned the purported investments.
9. The said documents are highly relevant and material for the just, proper, and effective adjudication of the present proceedings. These documents are material and crucial, as they go to the root of the issues in dispute, directly undermining and falsifying the claims sought to be advanced by the Claimant in the Statement of Claim.
10. Furthermore, the said documents could not have been produced earlier, since these documents were brought to the attention and notice of this Respondent only recently.

11. It is therefore just, proper, and in the interest of justice that the said documents be taken on record, exhibited, and read in evidence.
12. No prejudice whatsoever shall be caused to the Claimant and/or Respondent No. 4 by allowing the present Application. On the contrary, grave and irreparable prejudice would be occasioned to this Respondent if the present Application is not granted, despite the relevance, necessity, and authenticity of the documents in question.

In view of the above, this Respondent most respectfully prays that this Hon'ble Tribunal may be pleased to allow the present Application and permit this Respondent to place on record, produce, and rely upon the documents referred to hereinabove in the course of the arbitral proceedings and the hearing of the Section 17 application pending before this Hon'ble Tribunal.

Date: 12.06.2026

Place: Panaji, Goa

Respondent No. 2